

22STCV30270 22STCV30270

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-07-28

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=BH%20%2C207%2C07%2F28%2F2026

Source SHA-256: 4936c22f693fcaa9c3b41a7eb392b4c34899ccaa7d27b2339402726a5d0dfc9d

Case Number: 22STCV30270 Hearing Date: July 28, 2026 Dept: 207

TENTATIVE

RULING – NO. 1

DEPARTMENT

207

HEARING DATE

July

28, 2026

CASE NUMBER

22STCV30270

[Consolidated with Case No. 24SMCV00738]

MOTION

Motion

for Summary Judgment, or in the alternative, Summary Adjudication

MOVING PARTY

Defendant Wilshire Manning Homeowners

Association

OPPOSING PARTIES

(1)

Plaintiffs Romana Niksefat; Fouzieh Niksefat; Salim
Niksefat; and Nader Niksefat

(2)

Plaintiff Romana Niksefat

MOVING PAPERS:

Notice
of Motion and Motion for Summary Judgment/Summary Adjudication;
Declaration of Lillian Harwell

Declaration of John Brault

Request for Judicial Notice

Separate Statement of Material Facts

OPPOSITION PAPERS:

Plaintiff
Romana Niksefat:

Opposition to Motion for Summary
Judgment

Declaration of Eugene M. Vanderpol

Declaration of Romana Niksefat

Declaration of Mark J. Burns

Evidentiary Objections in Support
of Plaintiff's Opposition

Response to Statement of Material
Facts in Support of Plaintiff's Opposition

Index of Evidence

Declaration of Lauren M. Kiesel
and Compendium of Evidence in Support of Plaintiff's Opposition

Plaintiffs
Fouzieh Niksefat; Salim Niksefat; and Nader Niksefat:

Memorandum of Points and
Authorities in Support of Plaintiffs' Opposition to Motion for Summary
Judgment

Evidentiary Objections

Separate Statement of Disputed and
Additional Material Facts

Separate Volume of Exhibits

Request for Judicial Notice

Declaration of Vincent A. Hynes

Declaration of Eugene M. Vanderpol,
MSME, PE, ACTAR

Declaration of Mark J. Burns,
B.E., J.D.

REPLY PAPERS:

To Plaintiff Romana Niksefat:

1. Evidentiary Objections to the Declaration of
Mark Burns B.E., J.D.

2. Evidentiary Objections to the Declaration of
Eugene Vanderpol, MSME, PE, ACTAR

3. Reply to Plaintiff's Opposition to Motion for

Summary Judgment

4. Reply to Separate Statement of Undisputed Material Facts

To Plaintiffs Fouzieh Niksefat; Salim
Niksefat; and Nader Niksefat:

Evidentiary
Objections to the Declaration of Mark Burns B.E., J.D.

Evidentiary
Objections to the Declaration of Eugene Vanderpol, MSME, PE, ACTAR

Reply to
Plaintiffs' Separate Statement of Undisputed Material Facts

Reply
to Plaintiffs' Opposition to Motion for Summary Judgment

BACKGROUND

These two consolidated cases arise from the untimely death of Robert Niksefat ("Decedent" or "Robert"), who fell over the side of the balcony of the condominium unit he and his wife rented, while trying to locate the source of loud music, which emanated from the unit directly below his.

Separate lawsuits were brought by

(1) Decedent's spouse, Plaintiff Romana Niksefat ("Romana"), individually and as Successor-in-Interest to Robert Niksefat (Case No. 22STCV30270); and

(2) Decedent's parents, Plaintiffs Fouzieh Niksefat ("Fouzieh") and Salim Niksefat ("Salim"), individually and as Successors-in-Interest to Robert Niksefat, and his brother, Nader Niksefat ("Nader") (together, "the Niksefats") (Case No. 24SMCV00738.)

Both lawsuits are alleged against

(1) the homeowners association, Wilshire Manning Homeowners Association, Inc. ("HOA" or "Wilshire"); and

(2) the owners of Decedent's and Romana's condominium unit, Francis R. Mariani ("Francis") and Linda Y. Mariani ("Linda") (together, "the Marianis"), individually and as Trustees of the Francis R. and Linda Y. Mariani Living Trust; and

In addition, Romana's lawsuit is brought against

(3) the neighbors directly below the Decedent's unit, Isaac Faliv ("Isaac"); Minoo Faliv ("Minoo"); and Ethan Faliv ("Ethan") (together, "the Falivs")

Romana's operative Second Amended Complaint ("SAC") alleges six causes of action as follows:

1. Negligence

(against the HOA and the Marianis) due to the unsafe condition of the balcony's low, metal guardrail

2. Breach

of Governing Documents (against the HOA) for allowing some, but not requiring all unit owners to upgrade their lower metal guardrails with tall, tempered glass

3. Nuisance

(against the HOA) for allowing loud music and marijuana smoke to regularly emanate from the Falivs' residence.

4. Nuisance

(against the Falivs) for allowing loud music and marijuana smoke to regularly emanate from their residence

5. Negligent

Infliction of Emotional Distress (against the HOA and the Marianis) for the emotional distress resulting from their failure to upgrade the balcony's guardrail

6. Negligent

Infliction of Emotional Distress (against the Falivs) for the emotional distress resulting from the loud music and marijuana smoke emanating from their unit.

The Niksefats' Complaint alleges two causes of action as follows:

1. Wrongful

Death (by Decedent's parents against the HOA and the Marianis)

2. Negligent

Infliction of Emotional Distress (by Fouzieh and Nader against the HOA and the Marianis) of the emotional distress resulting from personally witnessing the Decedent's death.

The HOA now moves for summary judgment, or in the alternative, summary adjudication on the following issues:

Issue One: Plaintiffs' causes of action against

Wilshire Manning for negligence has no merit and Wilshire Manning is entitled to judgment on this cause of action as a matter of law.

Issue Two: Plaintiffs' causes of action against

Wilshire Manning for negligent infliction of emotional distress has no merit and Wilshire Manning is entitled to judgment on this cause of action as a matter of law.

Issue Three: To the extent the cause of action

arises from nuisance, Plaintiffs' causes of action against Wilshire Manning for negligence fails because Wilshire Manning did not create or allow a nuisance which caused or contributed to the incident.

Issue Four: Romana's cause of action against

Wilshire Manning for Breach of Governing Documents has no merit because Plaintiff Romana lacks standing to enforce Wilshire Manning's CC&Rs.

Issue Five: Fouzieh and Salim Niksefat lack

standing to maintain claims as the decedent's successors-in-interest as the decedent was married to Plaintiff Romana, who also presents a claim as the decedent's successors-in-interest. Absent standing as a successor-in-interest,

Wilshire Manning is entitled to judgment on the complaint filed by Salim Niksefat.

Romana and the Niksefats separately oppose the motion and the HOA has filed separate replies.

REQUESTS FOR JUDICIAL NOTICE

The HOA's Request for Judicial Notice

The HOA requests judicial notice of the following:

1. Los Angeles Building Code section 91.4404
which mandates that a balcony railing be at least 36 inches tall. (Harwell Decl., Ex. K.)

2. Romana and Robert Niksefat's Marriage License
dated April 24, 2022. (Harwell Decl., Ex. M.)

Regarding Exhibit K, the Court may
take judicial notice of regulations and legislative enactments issued by or
under the authority of any public entity in the United States. (Evid. Code, § 452, subd. (b).) Therefore, the Court takes judicial
notice of
Exhibit K.

Regarding Exhibit M, the Court may
take judicial notice of official acts of the legislative, executive, and
judicial departments of any state of the United States, as well as facts and
propositions that are not reasonably subject to dispute and are capable of
immediate and accurate determination by resort to sources of reasonably
indisputable accuracy. (Evid. Code, §
452, subd. (c) and (h).) However, while
the Court can take judicial notice of the existence of the marriage license as
an official act, the Court cannot take judicial notice of the fact that Romana
and the Decedent were married at the time of the accident.

Notwithstanding, the Court can still
consider the marriage license as evidence.

The Niksefats' Request for

Judicial Notice

The Niksefats request judicial notice of the following:

- 1996 Los Angeles Building

Code, Section 509.2, establishing the minimum height of guardrails at 42 inches.

- Selected excerpts from

the 1997 Handbook to the Uniform Building Code, recognizing 42 inches as the “minimum height that is recognized nationally as the proper height for guardrail protection.”

As discussed above, the Court may take judicial notice both of regulations and legislative enactments issued by or under the authority of any public entity in the United States, of official acts of the legislative, executive, and judicial departments of any state of the United States, and of facts and propositions not reasonably subject to dispute and capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy. (Evid Code, § 452, subd. (b), (c), and (h).) Therefore, the Court takes judicial notice of the above two documents.

EVIDENTIARY

OBJECTIONS

The Court rules as follows with respect to Romana’s evidentiary objections:

4. Sustained insofar as there is a typo as to the date of marriage (April 24 instead

of April 29); Overruled otherwise

6. Overruled

8. Overruled

13. Overruled

The Court rules as follows with
respect to the Niksefats' evidentiary objections:

1. Sustained

The Court rules as follows with
respect to the HOA's evidentiary objections to the Burns Declaration:

1. Overruled

2. Overruled

3. Sustained

4. Overruled

5. Overruled

6. Overruled

7. Overruled

The Court rules as follows with
respect to the HOA's evidentiary objections to the Vanderpol Declaration:

1. Overruled

2. Overruled

3. Overruled

4. Overruled

5. Overruled

6. Overruled

7. Overruled

8. Overruled

9. Overruled

10. Overruled

LEGAL STANDARDS – MOTION FOR SUMMARY JUDGMENT/ADJUDICATION

“[T]he party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law[.] There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.”
¿(Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850 (hereafter Aguilar).) ¿ “[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.” ¿(Ibid.; Smith v. Wells Fargo Bank, N.A. (2005) 135 Cal.App.4th 1463, 1474 [summary judgment standards held by Aguilar apply to summary adjudication motions].)

Further, “the trial court may not weigh the evidence in the manner of a factfinder to determine whose version is more likely true. Nor may the trial court grant summary judgment based on the court’s evaluation of credibility.” (Aguilar, supra, 25 Cal.4th. at p. 840 [cleaned up]; see also Weiss v. People ex rel. Department of Transportation (2020) 9 Cal.5th 840, 864 [“Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party”].)

A party may move for summary adjudication as to one or more causes of action, affirmative defenses, claims for damages, or issues of duty if that party contends that there is no merit to the cause of action, defense, or claim for damages, or if the party

contends that there is no duty owed. (See Code Civ. Proc., § 437c, subd. (f)(1).) “A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Ibid.) A cause of action has no merit if: (1) one or more elements of the cause of action cannot be separately established, even if that element is separately pleaded, or (2) a defendant establishes an affirmative defense to that cause of action.

(See Code Civ. Proc., § 437c, subd. (n); *Union Bank v. Superior Court* (1995) 31 Cal.App.4th 573, 583.)

Once the defendant has shown that a cause of action has no merit, the burden shifts to the plaintiff to show that a triable issue of material fact exists as to that cause of action. (See Code Civ. Proc., § 437c, subd. (o)(2); *Union Bank v. Superior Court*, supra, 31 Cal.App.4th at p.

583.) Additionally, in line with *Aguilar*,

“[o]n a motion for summary adjudication, the trial court has no discretion to exercise. If a triable issue of material fact exists as to the challenged causes of action, the motion must be denied. If there is no triable issue of fact, the motion must be granted.” (*Fisherman's Wharf Bay Cruise Corp. v. Superior Court* (2003) 114 Cal.App.4th 309, 320.)

DISCUSSION

1. ISSUE 1: NEGLIGENCE

a. Duty of Care – General Standards

“To state a cause of action for negligence, a plaintiff must establish the defendant owed a legal duty of care. Generally speaking, all persons have a duty to take reasonable care in their activities to avoid causing injury, though particular policy considerations may weigh in favor of limiting that duty in certain circumstances.” (*Brown v. USA Taekwondo* (2021) 11 Cal.5th 204, 209 (hereafter *Brown*)).

In general, “[e]veryone is responsible, not only for the result of his or her willful acts, but also for an injury occasioned to another by his or her want of ordinary care or skill in the management of his or her property or person, except so far as the latter has, willfully or by want of ordinary care, brought the injury upon himself or herself.” (Civ. Code, § 1714.) Section 1714 “establishes the default rule that each person has a duty to exercise, in his or her activities, reasonable

care for the safety of others.” (Brown, supra, 11 Cal.5th at p. 214.)

“Duty is not universal; not

every defendant owes every plaintiff a duty of care. A duty exists only if the plaintiff’s interests are entitled to legal protection against the defendant’s conduct. Whether a duty exists is a question of law to be resolved by the court.”

(Brown, supra, 11 Cal.5th at p. 213 [cleaned up].) “[W]hether to recognize a duty to protect is governed by a two-step inquiry. First,

the court must determine whether there exists a special relationship between the parties or some other set of circumstances giving rise to an affirmative duty to protect. Second, if so, the

court must consult the factors described in Rowland [1] to determine whether relevant policy considerations counsel limiting that

duty.” (Id. at p. 209.)

“Section 1714 states a broad

rule, but it has limits. We have explained that the law imposes a general duty of care on a defendant only when it is the defendant who has created a risk of harm to the plaintiff, including when the defendant is responsible for making the plaintiff’s position worse. The law does not impose the same duty on a defendant who did not contribute to the risk that the plaintiff would suffer the harm alleged. Generally, the person

who has not created a peril is not liable in tort merely for failure to take affirmative action to assist or protect another from that peril.” (Brown, supra, 11 Cal.5th at p. 214 [cleaned up].)

A special relationship between

the defendant and the victim is one that “gives the victim a right to expect” protection from the defendant.” (Brown,

supra, 11 Cal.5th at p. 216.) “Relationships between parents and children, colleges and students, employers and employees, common carriers and passengers, and innkeepers and guests, are all examples of special relationships that give rise to an affirmative duty to protect. The existence of such a special relationship puts the defendant in a unique position to protect the plaintiff from injury. The law requires the defendant to use this position accordingly.” (Ibid. [cleaned up].)

There is a special, fiduciary

relationship as between a homeowner’s association and its members (see Kovich

v. Paseo Del Mar Homeowners' Assn. (1996) 41 Cal.App.4th 863, 867) as well as between landlord and tenant (see Castaneda v. Olsher (2007) 41 Cal.4th 1205, 1213).

The Rowland factors include:

the foreseeability of harm to the plaintiff, the burden to the defendant and the consequences to the community of imposing the duty. The court's task in determining whether a duty exists is not to decide whether a particular plaintiff's injury was reasonably foreseeable in light of a particular defendant's conduct, but rather to evaluate more generally whether the category of negligent conduct at issue is sufficiently likely to result in the kind of harm experienced that liability may appropriately be imposed on the negligent party. Foreseeability, when analyzed to determine the existence or scope of a duty, is a question of law to be decided by the court.

(Jacobs v. Coldwell Banker Residential Brokerage Co. (2017) 14 Cal.App.5th 438, 446 [cleaned up].)

But "Foreseeability of harm is typically absent when a dangerous condition is open and obvious. Generally, if a danger is so obvious that a person could reasonably be expected to see it, the condition itself serves as a warning, and the landowner is under no further duty to remedy or warn of the condition. In that situation, owners and possessors of land are entitled to assume others will perceive the obvious and take action to avoid the dangerous condition." (Id. at p. 447 [cleaned up].) Similarly, in Krongos, the Court of Appeal held "Generally, if a danger is so obvious that a person could reasonably be expected to see it, the condition itself serves as a warning, and the landowner is under no further duty to remedy or warn of the condition." (Krongos v. Pacific Gas & Electric Co. (1992) 7 Cal.App.4th 387, 393.)

The HOA does not appear to challenge or otherwise dispute that a special relationship exists as between the HOA and Plaintiffs. Instead, the HOA argues that Plaintiffs may not maintain their causes of action against the HOA sounding in negligence because (1) the height of the railing was not a concealed dangerous condition giving rise to a duty to warn; (2) the open and obvious danger of the railing height did not give rise to a duty to warn

because encountering the danger is not a practical necessity; (3) the railing height did not violate the applicable building code; (4) Decedent's injury was not foreseeable; (5) other policy considerations do not support imposing a duty; and (6) the railing did not pose a substantial risk of injury when used in a reasonable manner.

b. HOA's Evidence

In support, the HOA advances the following evidence:

- On August 12, 2013, Decedent's parents, Salim and Fouzieh entered into a lease agreement with the Marianis to lease the subject condo. (UMF No. 1.)
- By 2021, Decedent assumed the lease. (UMF No. 2.)
- On July 16, 2022, the date of the incident, Decedent and Romana were married and lived together in the subject condo. (UMF Nos. 3-4.)
- In the moments preceding the incident, Decedent went onto the balcony to confirm the source of the noise and music he heard was coming from the Falivs' unit directly below, before losing his balance and plunging to his death. (UMF No. 7.)
- The Decedent consumed approximately ten to eleven drinks between noon and 10:30 p.m. on the day of the incident, and had a blood alcohol content of .179 at the time of his death. (Ex. C [Romana's response to Form Interrogatory No. 2.13]; Ex. N [Coroner's Report].)
- The balcony railing is at or below 38 inches high. (SAC ¶ 17; Ex. D [Romana's responses to HOA's Special Interrogatory No. 2]; Ex. F [Romana's responses to HOA's Form Interrogatories, passim])
- Prior to the incident, on May 17, 2012 and again on October 25, 2018, the HOA notified its homeowners that the Board granted permission to each unit owner to have tempered safety glass guardrails installed on their balconies at the owner's cost. The change was not mandated. (UMF No. 11.)

· The HOA took steps to abate the noise nuisance from the Falivs by issuing warnings and fines. (UMF No. 12.)

Specifically, the HOA argues that the danger of falling while bending over a 13th floor balcony to investigate sounds coming from the unit below is obvious, and Plaintiffs may not use the Decedent's intoxicated state to excuse his awareness of the obvious risk of peril. (See *Edwards v. California Sports, Inc.* (1988) 206 Cal.App.3d 1284, 1289.)

Further, the HOA asks the Court to take judicial notice of the Los Angeles Building Code, mandating that balcony railings must be at least 36 inches tall. Thus, the balcony railing at issue was not in violation of the applicable building code.

Therefore, the Court finds the HOA has met its initial prima facie burdens of production and persuasion to demonstrate that Plaintiffs cannot prevail on their negligence claim against the HOA.

c. Plaintiffs' Evidence

In opposition, Plaintiffs argue that a duty exists both under Civil Code section 1714 and under Rowland. They further point out that the balcony height was actually only 36 and 3/8 inches at its lowest point, and argue that compliance with the applicable, grandfathered-in Building Code provision requiring balconies be at least 36 inches high is a floor, but insufficient to satisfy their duty of care in light of the current code, requiring railings be at least 42 inches and their awareness of prior incidents of tenants falling to their death off the balconies.

Plaintiffs also refute that the Decedent was intoxicated at the time of the incident, citing to Romana's deposition testimony indicating, "Again, I don't think he was intoxicated and drunk. We had a few drinks and dinner. He was fine. It was a normal Saturday." (Ex. 8 to Kiesel Decl. at p. 116:18-20.)[2]

In support of their arguments, Plaintiffs advance the following evidence:

- Expert evidence that the railing at issue measured 36 3/8 inches at its lowest point. (Ex. 19 [Burns Decl.] ¶ 8.)

- New building code requirements that railings be at least 42 inches (RJN No. 1 [1996 Los Angeles Building Code, Section 509.2].)

- Testimony that Romana could not recall precisely how many drinks the Decedent consumed on the day of the accident. (Niksefats' Ex. 12 [Romana's Depo] at pp. 97:11-109:20.)

- Romana's testimony, "Again, I don't think he was intoxicated and drunk. We had a few drinks and dinner. He was fine. It was a normal Saturday." (Romana's Ex. 8 to Kiesel Decl. [Romana's Depo] at p. 116:18-20.)

- The HOA's prior knowledge that two individuals had previously died from falling over the railings. (Romana's Ex. 5 to Kiesel Decl. [Khosrovani Depo] at pp. 215:1-25; 217:16-22; 218:21-23; Ex. 7 [Santos Depo] at pp. 57:23-58:10.)

Regarding Civil Code section

1714, the Court generally agrees that the HOA owes an ordinary duty of care not to create an unreasonable risk of harm to its homeowners, tenants, and guests. But here, the evidence demonstrates the railings at issue the HOA governed and maintained complied with all relevant Building Code height requirements, as the height did not dip below the mandated 36 inches, even at its lowest point.

Nor have Plaintiffs provided

evidence of any other extenuating factors that the railings posed an unreasonable risk of harm, notwithstanding their compliance with the applicable height requirement. For example, there is no evidence that the building primarily housed individuals particularly vulnerable to falling over a balcony railing, or that the railings were in a state of disrepair or otherwise posed an unreasonable risk of harm.

And while Plaintiffs point to

the new railing height requirements for new constructions, if the legislature

intended to require that all railings in old buildings be updated to meet the new height standards, they could have, but chose not to do so.

With regard to a duty under the Rowland factors, Plaintiffs argue that the open and obvious doctrine bars only a duty to warn, not a duty to remedy.

Not so. "Generally, if a danger is so obvious that a person could reasonably be expected to see it, the condition itself serves as a warning, and the landowner is under no further duty to remedy or warn of the condition." (Krongos v. Pacific Gas & Electric Co., supra, 7 Cal.App.4th at p. 393, emphasis added.)

But Plaintiffs have provided no evidence of a hidden danger. By their very nature, balconies pose an inherent risk of injury or death by falling, especially where, as here, the balcony is thirteen stories above the ground.

Nor was the Decedent's death particularly foreseeable. Plaintiffs point to two prior deaths from individuals falling over the side of a balcony.

But as the HOA points out in reply, the testimony cited demonstrates that one of those individuals committed suicide, and the other became dizzy while standing on a ladder to clean exterior windows and fainted. Thus, neither incident put the HOA on notice of the foreseeability that tenants are likely to lean over the balcony railing so far that they accidentally fall.

Further, the railing height being 42 inches instead of 36 inches, as Plaintiffs urge, would not have made any difference in the deaths of someone who intentionally jumped or of someone who fell from atop a ladder.

Further, the evidence demonstrates that the Decedent was intoxicated at the time of his death, and Plaintiff's opposition evidence does not refute that. While Romana may have testified that she wasn't sure exactly how many drinks were consumed, her testimony nonetheless reveals that the Decedent consumed approximately 10 drinks from noon until 10:30 p.m. on the day of the incident, and his inebriated state is corroborated by the toxicology report. Thus, the Decedent was not operating the balcony and its railing in the manner in which a reasonable person would.

Therefore, the Court finds, in considering Rowland factors,

that no duty is owed to Plaintiffs.

Notwithstanding, the Plaintiffs have not met their burden of production to create any triable issues of fact that the HOA breached its ordinary duty of care to not create an unreasonable risk of harm, by virtue of governing/maintaining the existing railings and by providing the option (but not requiring) that homeowners can upgrade to tempered glass, if they so choose.

As such, finding Plaintiffs have not met their burden of production to create any triable issues of fact that the HOA was negligent vis-à-vis the railings, the Court grants the HOA summary adjudication as to Issue 1.

2. ISSUE 2: NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

“The traditional elements of duty, breach of duty, causation, and damages apply” to state a claim for negligent infliction of emotional distress. (Eriksson v. Nunnink (2015) 233 Cal.App.4th 708, 729 [cleaned up.]

“The law of negligent infliction of emotional distress in California is typically analyzed by reference to two ‘theories’ of recovery: the ‘bystander’ theory and the ‘direct victim’ theory.” (Spates v. Dameron Hospital Assn. (2003) 114 Cal.App.4th 208, 213 (hereafter Spates).)

“The bystander theory recognizes a duty in the limited class of cases where a plaintiff “(1) is closely related to the injury victim, (2) is present at the scene of the injury-producing event at the time it occurs and is then aware that it is causing injury to the victim and, (3) as a result suffers emotional distress beyond that which would be anticipated in a disinterested witness.” (Spates, supra, 114 Cal.App.4th at p. 213.)

By contrast, “[d]irect victim theory involves a duty owed directly to the plaintiff that is assumed by the defendant or imposed on the defendant as a matter of law, or that arises out of a relationship between the two.” (Spates, supra, 114 Cal.App.4th at p. 213.)

Here, Romana alleges she

endured emotional distress by virtue of hearing her husband plummet to his death. (Romana's SAC ¶ 67.) Similarly, Fouzieh and Nader allege they suffered emotional distress by virtue of witnessing the Decedent fall to his death. (Niksefats' Complaint ¶¶ 22-23.) Thus, Plaintiffs allege only a bystander theory of recovery.

However, because, as discussed above, the Court grants summary adjudication as to Issue 1, finding Plaintiffs have not created any triable issues of material fact demonstrating that the HOA was negligent (no duty), their negligent infliction of emotional distress claims similarly fail.

As such, the Court grants the HOA summary adjudication as to Issue 2.

3. ISSUE 3: NUISANCE

A "nuisance" is "[a]nything which is injurious to health, including, but not limited to, the illegal sale of controlled substances, or is indecent or offensive to the senses, or an obstruction to the free use of property, so as to interfere with the comfortable enjoyment of life or property, or unlawfully obstructs the free passage or use, in the customary manner, of any navigable lake, or river, bay, stream, canal, or basin, or any public park, square, street, or highway, is a nuisance." (Civ. Code, § 3479.)

A nuisance may be public, private, or both. (Koll-Irvine Center Property Owners Assn. v. County of Orange (1994) 24 Cal.App.4th 1036, 1041.) "Unlike public nuisance, which is an interference with the rights of the community at large, private nuisance is a civil wrong based on disturbance of rights in land." (Ibid.) "So long as the interference is substantial and unreasonable, and such as would be offensive or inconvenient to the normal person, virtually any disturbance of the enjoyment of the property may amount to a nuisance." (Ibid.)

The elements of a private nuisance are (1) Plaintiff leased or occupied the property; (2) Defendants, by acting or failing to act, created a dangerous condition on the property; (3) Defendants' action or failure to act was intentional, negligent, or reckless; (4) the condition substantially interfered with Plaintiff's use or enjoyment of the property; (5) an ordinary

person would be reasonably annoyed or disturbed by Defendants' conduct; (6) Plaintiff was harmed; (7) Defendants' conduct was a substantial factor in causing Plaintiff's harm; and (8) the seriousness of the harm outweighs the public benefit of Defendants' conduct.

(CACI No. 2021.)

Romana argues that the HOA is responsible for the nuisance because it failed to abate the "constant noise and loud music at all hours of the day and night" and "persistent marijuana smoke" emanating from the Falivs' unit. (Romana's SAC at ¶¶ 56-58.)

The

HOA argues that it did take reasonable steps to abate the nuisance by issuing warnings and fines and that even if the HOA had taken no action, the music and marijuana smoke did not cause the Decedent to fall; his decision to balance on the balcony railing did.

a. The HOA's Evidence

In

support, the HOA advances Exhibit I to the Harwell Declaration, consisting of three letters from the HOA to the Falivs.

In

the first letter, dated February 20, 2017, the HOA requests that the Falivs' son, Ethan, cease and desist violating the CC&Rs by causing a nuisance in the building. It outlines complaints the HOA received from neighbors on the following dates:

- 2/11/17 at 2:30 a.m. (after which Ethan's friends left at 3:00 a.m.);
- 10/30/16 at 11:30 a.m. (in which an HOA employee called and asked Ethan to lower the noise and Ethan responded that he was playing video games with friends);
- 10/23/16 at 10:25 p.m. (in which a neighbor asked the HOA to ask the Falivs to close their window due to excessive noise)
- 10/13/16 at 12:24 a.m. and again at 12:35 a.m. in which the HOA received phone calls from neighbors complaining of loud

noise. A few minutes prior, Ethan and four (4) friends had arrived in the building.

· 10/6/16 at 12:15 a.m. in which the HOA received a phone call from a neighbor complaining of marijuana smoke emanating from the unit. A few minutes prior, Ethan and eight (8) friends arrived in the building. Three more friends arrived at 12:26 a.m. and a further noise complaint was received at 12:46 a.m.. At 1:22 a.m., police arrived.

· 10/3/16 at 1:30 a.m. in which the HOA received a phone call from a neighboring unit complaining of marijuana smoke emanating from the Falivs' unit.

The February 20, 2017 letter notified the Falivs that the loud noise and marijuana smoke constituted a nuisance, and set a CC&R enforcement hearing for March 7, 2017 at 8:00 p.m.

The second letter, dated March 20, 2017 memorialized the result of the March 7, 2017 hearing, which the Falivs attended, after which the Falivs were directed to take measures to mitigate smoke from emanating from their unit and to limit noise by reducing the number of guests in the unit and to avoid making noise after 10 p.m. Further, the HOA noted that it had the right to impose a total of \$4,750 in fines for the six incidents, but waived imposing the fine, in light of the Falivs' "long history in the building without incident." The HOA nonetheless reserved the right to impose the \$4,750 in fines, in the event further incidents occurred in the future.

The third letter, dated August 22, 2016 describes an incident on or about August 18, 2016 at 10:15 p.m., in which several neighbors complained that Ethan Faliv had friends in and out of the unit, being loud, playing loud music, and smoking marijuana. The letter notified the Falivs that this behavior is a nuisance in violation of the CC&Rs, ordered Ethan to cease and desist, and warned that should the nuisance continue, the HOA would hold a hearing to assess monetary penalties, suspension of common area privileges, and suspension of the Falivs' voting rights.

Therefore, the HOA has met its initial burdens of production and persuasion to demonstrate that it took reasonable steps to abate the nuisance, in response to the complaints it

received in 2016 and early 2017, and there is no evidence that it received any further complaints after March 7, 2017.

b. Romana's Evidence

In opposition, Romana advances the underlying call log, which demonstrates more noise complaints were made in 2016-2017 than were listed in the letters. (Ex. 4 to Kiesel Decl.) Further, Romana advances her own declaration, indicating that between October 2021 when she moved into the unit and the July 16, 2022 date of the incident, there would be very loud parties in the Falivs' unit at least two times per month, involving lots of guests and amplified music so loud it would cause the windows in her unit to shake, and the guests would smoke marijuana and talk loudly on the balcony of the Falivs' unit. (Romana Decl. ¶¶ 4-11.)

Importantly, however, Romana's Declaration does not demonstrate that further complaints were made to the HOA after the March 7, 2017 hearing.

Further, the call logs list only the month and day the complaints were made, but not the year. Notwithstanding, they all appear to have been made in or about the same 2016-2017 time period covered by the letters. Even further, all complaints about the Falivs listed on the call logs were made by the Decedent himself.

As such, there is no evidence the HOA was aware of the Falivs disturbing any other neighbors or that the Falivs continued to disturb the Decedent after the March 7, 2017 hearing. The evidence demonstrates that as far as the HOA was aware, the problem had been rectified by the remedial measures the HOA mandated and threat of monetary fines at the March 7, 2017 hearing.

Therefore, Romana has not met her burden of production to create any triable issue of material fact that the HOA may be culpable for its inaction after the March 7, 2017 hearing.

4. ISSUE 4: ROMANA'S STANDING TO ENFORCE
CC&Rs

a. The HOA's Evidence

The HOA argues that Romana

lacks standing to enforce the CC&Rs because she is neither a party to, nor a third-party beneficiary of the CC&Rs.

As discussed above, the HOA has advanced evidence that

- On August 12, 2013, Decedent's parents, Salim and Fouzieh entered into a lease agreement with the Marianis to lease the subject condo unit the Marianis owned. (UMF No. 1.)
- By 2021, the Decedent assumed the lease. (UMF No. 2.)
- On July 16, 2022, the date of the incident, Romana and the Decedent lived together in the unit as a married couple. (UMF No. 3.)

Thus, the HOA has demonstrated that, as a renter and not an owner or HOA member, Romana is not a party to the CC&Rs.

As for third party beneficiary status, "A contract, made expressly for the benefit of a third person, may be enforced by him at any time before the parties thereto rescind it." (Civ. Code, § 1559.)

To be deemed a third-party beneficiary under California law, (1) the third party must in fact benefit from the contract; (2) a motivating purpose of the contracting parties must be to provide a benefit to the third party; and (3) permitting a third party to bring its own action on the contract must be consistent with the objectives of the contract and the reasonable expectations of the contracting parties. (Goonewardene v. ADP, LLC (2019) 6 Cal.5th 817, 829-830.)

Here, while the CC&Rs describe property rights and obligations of membership, they do not mention, much less expressly permit enforcement by non-member residents, like Romana.

Thus, the HOA has met its initial burdens of production and persuasion to demonstrate that Romana lacks standing to enforce the CC&Rs, as she is neither a party nor a third-party beneficiary of the CC&Rs.

b. Romana's Evidence

In opposition, Romana advances the Decedent's lease agreement by and among the Marianis, the HOA, and Decedent's parents, demonstrating that the tenants (then-Decedent's parents) agreed to be bound by and adhere to the terms of the Governing Documents. (Ex. 14 to Kiesel Decl.) Further, Romana argues that she has standing to enforce the CC&Rs as successor-in-interest to the Decedent, who assumed the lease.

The Court does not find Romana has met her burden of production to demonstrate that she is a third-party beneficiary with standing to enforce the CC&Rs.

As at threshold matter, there is no evidence of a formal written rental agreement as between the Marianis and Decedent and/or Romana. The only written agreement provided binds Decedent's parents, not Decedent or Romana.

The only evidence that Decedent assumed the lease is a June 28, 2021 email from Frank Mariani to the Decedent, indicating that effective October 1, 2021, the rent on the subject unit will be 1408, to which the Decedent responds, "Yes I plan on staying there and I understand." (Ex. H at p. MARIANI 000050.)

There is no evidence that Decedent or Romana agreed to be bound by the terms of the CC&Rs.

Further, the agreement by the Decedent's parents to be bound by the terms of the CC&Rs does not demonstrate that they, as non-members, were intended to be beneficiaries of the CC&Rs, with the right to enforce them as to the HOA. Rather, read in whole and in context, the motivating purpose behind the CC&Rs is clearly to benefit the members. To the extent the rental agreement with the Decedent's parents required that they comply, as a condition of their tenancy, with the rules imposed by the CC&Rs, that was clearly intended to benefit the members and their property values, not the non-member tenants' subjective experience.

Therefore, Romana has not met her burden of production to create any triable issues of material fact that she is a third-party beneficiary entitled to enforce the CC&Rs.

5. ISSUE 5: THE NIKSEFATS' STANDING AS DECEDENT'S SUCCESSORS IN INTEREST

Wilshire next argues that the Niksefats lack standings as the Decedent's successor-in-interest, because he was survived by his wife Romana, who has also brought suit as his successor-in-interest.

As discussed above, the Marianis advance the marriage license between Decedent and Romana, demonstrating they were married in April 2022.

Unless a decedent dies intestate, the persons with standing to bring a wrongful death claim under Section 377.60 include "the decedent's surviving spouse, domestic partner, children, and issue of deceased children, or, if there is no surviving issue of the decedent, the persons, including the surviving spouse or domestic partner, who would be entitled to the property of the decedent by intestate succession." (Code Civ. Proc., § 377.60, subd. (a), emphasis added.)

Further, regardless of whether they are qualified under subdivision (a), if the parents of the decedent were dependent on the decedent, they may also bring a cause of action for wrongful death. (Code Civ. Proc., § 377.60, subd. (b).)

To qualify as dependent parents, they must have been dependent "on the financial support of their children for the necessities of life" including things like shelter, clothing, food, and medical treatment. (Chavez v. Carpenter (2001) 91 Cal.App.4th 1433, 1445, fn. 8, 1446.) Emotional support alone does not suffice. (Id. at p. 1445.)

Thus, under the plain language of the statute, because the Decedent had no surviving issue, it would appear

that both Decedent's parents and Romana would have standing to sue for wrongful death. This is confirmed by the Rutter

Guide: "Parents have standing to sue if the decedent left no issue. This is so even where decedent left a surviving spouse or registered domestic partner." (Ross and Cohen, Cal. Prac.

Guide: Probate (2026) Ch. 15-B, ¶ 15:352.)

The HOA argues that where, as here, the decedent is survived by a spouse, the right of the parents to bring a suit for wrongful death relies on their status as dependent parents. Further, the HOA points to the Niksefats' Complaint itself, which does not allege standing on the basis of their financial dependency on the decedent, but rather only as the Decedents' successors-in-interest. (See Niksefats' Complaint at p. 1.)[3]

In support of its argument that Decedent's parents lack standing as successors-in-interest, the HOA cites to Hazelwood v. Hazelwood (1976) 57 Cal.App.3d 693, 696. But in Hazelwood, the decedent left both a widow and a minor child of the marriage. Thus, because the decedent in Hazelwood left issue, his parents' standing hinged on their dependency.

By contrast, here, there is no evidence that the Decedent is survived by any issue. Therefore, both Ramona, as his widow, and Fouzieh and Salim, as his parents, have standing to bring wrongful death claims.

Notwithstanding, the Niksefats' wrongful death claim rests on allegations that that the balcony railing was not "an appropriate height to prevent individuals like [Decedent] from falling over it" in violation of the applicable statutes and their duties in negligence. (See Niksefats' Complaint ¶ 13.)

Therefore, because, as discussed above, the Court grants summary adjudication as to Issue 1, finding no triable issues of material fact that the railing height is in violation of the applicable statutory requirements or that the HOA was otherwise negligent for failing to upgrade the railings to the tempered glass,

the Niksefats have no remaining viable causes of action.

CONCLUSION AND ORDER

For the foregoing reasons, finding no triable issues of material fact that the HOA is entitled to judgment as a matter of law with respect to Plaintiffs' causes of action premised in the HOA's negligence for failing to require taller balcony railings, the Court grants summary adjudication of Issues 1 and 2. In summary, the Court finds as a matter of law that no duty of due care exists after consideration of the Rowland factors.

Further, finding Ramona has not created any triable issues of material fact that the HOA received complaints after March 2017 but failed to take action to enforce the CC&Rs and abate the nuisance in response to those complaints, the Court grants summary adjudication of Issue 3.

Further, finding Ramona has not met her burden of production to create a triable issue of material fact that she has standing to enforce the CC&Rs as a third-party beneficiary, the Court grants summary adjudication of Issue 4.

Because these four issues dispose of all causes of action alleged by all Plaintiffs against the HOA, the Court grants the HOA's motion for summary judgment.

The Court will enter the proposed Order lodged on October 3, 2025 in conformity with the ruling.

The HOA shall provide notice of the Court's ruling/Order, and file the notice with a proof of service forthwith.

DATED: July 28, 2026 ____/s/____

Michael
E. Whitaker

Judge
of the Superior Court

[1] Rowland v. Christian (1968) 69 Cal.2d 108.

[2] Romana also clarifies that

she and the Decedent were married on April 29, 2022, not April 24, 2022, as indicated in the HOA's separate statement.

Romana does not dispute she and the Decedent were married and living together at the time of the July 16, 2022 incident.

[3] "The

pleadings play a key role in a summary judgment motion. The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues and to frame the outer measure of materiality in a summary judgment proceeding. As our Supreme Court has explained it: The materiality of a disputed fact is

measured by the pleadings, which set the boundaries of the issues to be resolved at summary judgment. Accordingly, the

burden of a defendant moving for summary judgment only requires that he or she negate plaintiff's theories of liability as alleged in the complaint; that is, a moving party need not refute liability on some theoretical possibility not included in the pleadings." (Hutton

v. Fidelity National Title Co. (2013) 213 Cal.App.4th 486, 493 [cleaned up]; see also Laabs v. City of Victorville (2008) 163 Cal.App.4th 1242, 1258 ["The complaint limits the issues to be addressed at the motion for summary judgment. The rationale is clear: It is the allegations in the complaint to which the summary judgment motion must respond"].)

TENTATIVE

RULING – NO. 2

DEPARTMENT

207

HEARING DATE

July

28, 2026

CASE NUMBER

22STCV30270

[Consolidated with Case No. 24SMCV00738]

MOTION

Motion

for Summary Judgment, or in the alternative, Summary Adjudication

MOVING PARTIES

Defendants Francis R. Mariani; Linda Y.

Mariani; and Francis R. and Linda Y. Mariani Living Trust

OPPOSING PARTIES

(1)

Plaintiff Romana Niksefat;

(2)

Plaintiffs Fouzieh Niksefat; Salim Niksefat; and

Nader Niksefat

MOVING PAPERS:

Notice

Of Motion And Motion For Summary Judgment/Summary Adjudication;

Declaration Of Ben M. Armistead; Separately Bound Volume of

Exhibits

Separate Statement of Material Facts

Index of Exhibits

OPPOSITION PAPERS:

Plaintiff

Romana Niksefat:

Opposition

to Motion for Summary Judgment/Summary Adjudication

Response

to Statement of Material Facts and Separate Statement of Additional Facts

in Support of Plaintiff's Opposition

Evidentiary

Objections in Support of Plaintiff's Opposition

Declaration

of Eugene M. Vanderpol

Declaration

of Romana Niksefat

Declaration

of Mark J. Burns

Index

of Evidence

Declaration

of Lauren M. Kiesel and Compendium of Evidence in Support of Plaintiff's
Opposition

Plaintiffs Fouzieh Niksefat;

Salim Niksefat; and Nader Niksefat:

Memorandum

of Points and Authorities in Support of Plaintiffs' Opposition to Motion
for Summary Judgment

Declaration

of Mark J. Burns, B.E., J.D.

Declaration

of Eugene M. Vanderpol, MSME, PE, ACTAR

Separate

Volume of Exhibits

Declaration

of Vincent A. Hynes

Request
for Judicial Notice

Separate
Statement of Disputed and Additional Material Facts

Evidentiary
Objections

REPLY PAPERS:

To All Plaintiffs:

Reply
to Plaintiffs' Oppositions to Motion for Summary Judgment/Summary
Adjudication; Declaration of Justin M. Marvisi

To Plaintiff Romana Niksefat:

1.
Response
to Plaintiff's Separate Statement of Undisputed Material Facts in Support of
Opposition

Evidentiary Objections to
Plaintiff's Separate Statement

To Plaintiffs Fouzieh
Niksefat; Salim Niksefat; and Nader Niksefat:

Response
to Fouzieh Defendants' Separate Statement of Undisputed Material Facts in
Support of Opposition

BACKGROUND

These two consolidated cases arise from the untimely death of Robert
Niksefat ("Decedent" or "Robert"), who fell over the side of the balcony of the
condominium unit he and his wife rented, while trying to locate the source of
loud music, which emanated from the unit directly below his.

Separate lawsuits were brought by

(1) Decedent's spouse, Plaintiff Romana Niksefat ("Romana"), individually and as Successor-in-Interest to Robert Niksefat (Case No. 22STCV30270); and

(2) Decedent's parents, Plaintiffs Fouzieh Niksefat ("Fouzieh") and Salim Niksefat ("Salim"), individually and as Successors-in-Interest to Robert Niksefat, and his brother, Nader Niksefat ("Nader") (together, "the Niksefats") (Case No. 24SMCV00738.)

Both lawsuits are alleged against

(1) the homeowners association, Wilshire Manning Homeowners Association, Inc. ("HOA" or "Wilshire"); and

(2) the owners of Decedent's and Romana's condominium unit, Francis R. Mariani ("Francis") and Linda Y. Mariani ("Linda") (together, "the Marianis"), individually and as Trustees of the Francis R. and Linda Y. Mariani Living Trust; and

In addition, Romana's lawsuit is brought against

(3) the neighbors directly below the Decedent's unit, Isaac Faliv ("Isaac"); Minoo Faliv ("Minoo"); and Ethan Faliv ("Ethan") (together, "the Falivs")

Romana's operative Second Amended Complaint ("SAC") alleges six causes of action as follows:

1. Negligence

(against the HOA and the Marianis) due to the unsafe condition of the balcony's low, metal guardrail

2. Breach

of Governing Documents (against the HOA) for allowing some, but not requiring all unit owners to upgrade their lower metal guardrails with tall, tempered glass

3. Nuisance

(against the HOA) for allowing loud music and marijuana smoke to regularly emanate from the Falivs' residence.

4. Nuisance

(against the Falivs) for allowing loud music and marijuana smoke to regularly emanate from their residence

5. Negligent

Infliction of Emotional Distress (against the HOA and the Marianis) for the emotional distress resulting from their failure to upgrade the balcony's guardrail

6. Negligent

Infliction of Emotional Distress (against the Falivs) for the emotional distress resulting from the loud music and marijuana smoke emanating from their unit.

The Niksefats' Complaint alleges two causes of action as follows:

1. Wrongful

Death (by Decedent's parents against the HOA and the Marianis)

2. Negligent

Infliction of Emotional Distress (by Fouzieh and Nader against the HOA and the Marianis) of the emotional distress resulting from personally witnessing the Decedent's death.

The Marianis now move for summary judgment, or in the alternative, summary adjudication on the following issues:

Issue One: Plaintiffs' cause of action against

Defendants for negligence has no merit and Defendants are entitled to judgment on this cause of action as a matter of law.

Issue Two: Plaintiffs' cause of action against

Defendants for negligent infliction of emotional distress no merit and Defendants are entitled to judgment on this cause of action as a matter of law.

Issue Three: Fouzieh and Salim Niksefat lack

standing to maintain claims as the decedent's successors-in-interest as the decedent was married to Plaintiff Romana, who also presents a claim as the decedent's successors-in-interest.

Romana and the Niksefats separately oppose the motion and the Marianis have filed one consolidated reply.

REQUEST FOR JUDICIAL NOTICE

The Niksefats request judicial notice of the following:

- 1996 Los Angeles Building

Code, Section 509.2, establishing the minimum height of guardrails at 42 inches.

- Selected excerpts from

the 1997 Handbook to the Uniform Building Code, recognizing 42 inches as the "minimum height that is recognized nationally as the proper height for guardrail protection."

The Court may take judicial notice of regulations and legislative enactments issued by or under the authority of any public entity in the United States. (Evid. Code, § 452, subd. (b).) The Court may also take judicial notice of official acts of the legislative, executive, and judicial departments of any state of the United States, as well as facts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy. (Evid. Code, § 452, subd. (c) and (h).)

Therefore, the Court takes judicial notice of the above two documents.

EVIDENTIARY OBJECTIONS

The Court rules as follows with respect to Romana's evidentiary objections:

4. Sustained insofar as there is a typo as to the date of marriage

(April 24 instead

of April 29); Overruled
otherwise

6. Overruled

8. Overruled

14. Overruled

15. Overruled

16. Overruled

18. Sustained insofar as there is a typo as to the date of marriage
(April 24 instead

of April 29); Overruled
otherwise

The Court rules as follows with
respect to the Niksefats' evidentiary objections:

1. Sustained

2. Sustained

The Court rules as follows with respect to the Marianis' evidentiary
objections:

1. Sustained

2. Sustained

3. Overruled

LEGAL STANDARDS – MOTION FOR SUMMARY
JUDGMENT/ADJUDICATION

“[T]he party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law[.] There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850 (hereafter Aguilar).) “[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.” (Ibid.; Smith v. Wells Fargo Bank, N.A. (2005) 135 Cal.App.4th 1463, 1474 [summary judgment standards held by Aguilar apply to summary adjudication motions].)

Further, “the trial court may not weigh the evidence in the manner of a factfinder to determine whose version is more likely true. Nor may the trial court grant summary judgment based on the court’s evaluation of credibility.” (Aguilar, supra, 25 Cal.4th. at p. 840 [cleaned up]; see also Weiss v. People ex rel. Department of Transportation (2020) 9 Cal.5th 840, 864 [“Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party”].)

A party may move for summary adjudication as to one or more causes of action, affirmative defenses, claims for damages, or issues of duty if that party contends that there is no merit to the cause of action, defense, or claim for damages, or if the party contends that there is no duty owed. (See Code Civ. Proc., § 437c, subd. (f)(1).) “A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Ibid.) A cause of action has no merit if: (1) one or more elements of the cause of action cannot be separately established, even if that element is separately pleaded, or (2) a defendant establishes an affirmative defense to that cause of action. (See Code Civ. Proc., § 437c, subd. (n); Union Bank v. Superior Court (1995) 31 Cal.App.4th 573, 583.) Once the defendant has shown that a cause of action has no merit, the

burden shifts to the plaintiff to show that a triable issue of material fact

exists as to that cause of action. (See Code Civ. Proc., § 437c, subd. (o)(2); *Union Bank v. Superior Court*, supra, 31 Cal.App.4th at p.

583.) Additionally, in line with *Aguilar*,

"[o]n a motion for summary adjudication, the trial court has no discretion to exercise. If a triable issue of material fact exists as to the challenged causes of action, the motion must be denied. If there is no triable issue of fact, the motion must be granted." (*Fisherman's Wharf Bay Cruise Corp. v. Superior Court* (2003) 114 Cal.App.4th 309, 320.)

DISCUSSION

1. ISSUE 1 – PLAINTIFFS' CAUSE OF ACTION FOR NEGLIGENCE

a. Duty of Care – General Standards

"To state a cause of action for negligence, a plaintiff must establish the defendant owed a legal duty of care. Generally speaking, all persons have a duty to take reasonable care in their activities to avoid causing injury, though particular policy considerations may weigh in favor of limiting that duty in certain circumstances." (*Brown v. USA Taekwondo* (2021) 11 Cal.5th 204, 209 (hereafter *Brown*)).

In general, "[e]veryone is responsible, not only for the result of his or her willful acts, but also for an injury occasioned to another by his or her want of ordinary care or skill in the management of his or her property or person, except so far as the latter has, willfully or by want of ordinary care, brought the injury upon himself or herself." (Civ. Code, § 1714.) Section 1714 "establishes the default rule that each person has a duty to exercise, in his or her activities, reasonable care for the safety of others." (*Brown*, supra, 11 Cal.5th at p. 214.)

"Duty is not universal; not every defendant owes every plaintiff a duty of care. A duty exists only if the plaintiff's interests are entitled to legal protection against the defendant's conduct. Whether a duty exists is a question of law to be resolved by the court." (*Brown*, supra, 11 Cal.5th at p. 213 [cleaned up].) "[W]hether to recognize a duty to protect is

governed by a two-step inquiry. First, the court must determine whether there exists a special relationship between the parties or some other set of circumstances giving rise to an affirmative duty to protect. Second, if so, the court must consult the factors described in Rowland [1] to determine whether relevant policy considerations counsel limiting that duty." (Id. at p. 209.)

"Section 1714 states a broad rule, but it has limits. We have explained that the law imposes a general duty of care on a defendant only when it is the defendant who has created a risk of harm to the plaintiff, including when the defendant is responsible for making the plaintiff's position worse. The law does not impose the same duty on a defendant who did not contribute to the risk that the plaintiff would suffer the harm alleged. Generally, the person who has not created a peril is not liable in tort merely for failure to take affirmative action to assist or protect another from that peril." (Brown, supra, 11 Cal.5th at p. 214 [cleaned up].)

A special relationship between the defendant and the victim is one that "gives the victim a right to expect" protection from the defendant." (Brown, supra, 11 Cal.5th at p. 216.) "Relationships between parents and children, colleges and students, employers and employees, common carriers and passengers, and innkeepers and guests, are all examples of special relationships that give rise to an affirmative duty to protect. The existence of such a special relationship puts the defendant in a unique position to protect the plaintiff from injury. The law requires the defendant to use this position accordingly." (Ibid. [cleaned up].)

There is a special, fiduciary relationship as between a homeowner's association and its members (see Kovich v. Paseo Del Mar Homeowners' Assn. (1996) 41 Cal.App.4th 863, 867) as well as between landlord and tenant (see Castaneda v. Olsher (2007) 41 Cal.4th 1205, 1213).

The Rowland factors include:

the foreseeability of harm to the plaintiff, the burden to the defendant and the consequences to the community of imposing the duty. The court's task in determining

whether a duty exists is not to decide whether a particular plaintiff's injury was reasonably foreseeable in light of a particular defendant's conduct, but rather to evaluate more generally whether the category of negligent conduct at issue is sufficiently likely to result in the kind of harm experienced that liability may appropriately be imposed on the negligent party. Foreseeability, when analyzed to determine the existence or scope of a duty, is a question of law to be decided by the court.

(Jacobs v. Coldwell Banker Residential Brokerage Co. (2017) 14 Cal.App.5th 438, 446 [cleaned up].)

But “Foreseeability of harm is typically absent when a dangerous condition is open and obvious. Generally, if a danger is so obvious that a person could reasonably be expected to see it, the condition itself serves as a warning, and the landowner is under no further duty to remedy or warn of the condition. In that situation, owners and possessors of land are entitled to assume others will perceive the obvious and take action to avoid the dangerous condition.” (Id. at p. 447 [cleaned up].) Similarly, in Krongos, the Court of Appeal held “Generally, if a danger is so obvious that a person could reasonably be expected to see it, the condition itself serves as a warning, and the landowner is under no further duty to remedy or warn of the condition.” (Krongos v. Pacific Gas & Electric Co. (1992) 7 Cal.App.4th 387, 393.)

The Marianis do not appear to challenge or otherwise dispute that a special relationship exists as between them and the Decedent, as the Decedent's landlord. Instead, the Marianis argue that Plaintiffs may not maintain their cause of action against the HOA for negligence because (1) the height of the railing was not a concealed dangerous condition giving rise to a duty to warn; (2) the open and obvious danger of the railing height did not give rise to a duty to warn because encountering the danger is not a practical necessity; (3) the railing height did not violate the applicable building code; (4) the Marianis had no notice of any dangerous condition, as they had not lived on the property for decades; (5) Decedent's injury was not foreseeable; (6) other policy considerations do not support imposing a duty; and (7) the railing did not pose a substantial risk of injury when used in a reasonable manner.

b.

The Marianis' Evidence

In support, the Marianis
advance the following evidence:

- On August 12, 2013, Decedent's parents, Salim and Fouzieh entered into a lease agreement with the Marianis to lease the subject condo. (UMF No. 1.)
- By 2021, Decedent assumed the lease. (UMF No. 2.)
- On July 16, 2022, the date of the incident, Decedent and Romana were married and lived together in the subject condo. (UMF Nos. 3-4.)
- In the moments preceding the incident, Decedent went onto the balcony to confirm the source of the noise and music he heard was coming from the Falivs' unit directly below, before losing his balance and plunging to his death. (UMF No. 7.)
- The Decedent consumed approximately ten to eleven drinks between noon and 10:30 p.m. on the day of the incident. (Ex. C [Romana's response to Form Interrogatory No. 2.13])
- The balcony railing is at or just below 38 inches high. (SAC ¶ 17; Ex. G [Romana's responses to the Marianis' Special Interrogatory No. 1]; Brault Decl. ¶ 8)
- The building permit for the construction of the subject building required that the guardrails be at least 36 inches tall. (Brault Decl. ¶ 10.)
- Section 6.2 of the CC&Rs place the duty to repair and maintain the balconies and their guard rails on the HOA. (UMF No. 11.)
- Neither the Decedent nor Plaintiffs ever communicated with the Marianis about the balcony or its railing. (UMF No. 14.)
- The Marianis had no notice of any prior incidents involving tenants falling over the balcony prior to the subject

incident. (UMF No. 16.)

Specifically, the Marianis argue that the danger of falling while bending over a 13th floor balcony to investigate sounds coming from the unit below is obvious, and Plaintiffs may not use the Decedent's intoxicated state to excuse his awareness of the obvious risk of peril. (See *Edwards v. California Sports, Inc.* (1988) 206 Cal.App.3d 1284, 1289.)

Therefore, the Marianis have met their initial burdens of production and persuasion to demonstrate that Plaintiffs cannot prevail on their negligence claim against them.

C.

Plaintiffs' Evidence

In opposition, Plaintiffs argue that a duty exists both under Civil Code section 1714 and under *Rowland*. They further point out that the balcony height was actually only 36 and 3/8 inches at its lowest point, and argue that compliance with the applicable, grandfathered-in Building Code provision requiring balconies be at least 36 inches high is a floor, but may be insufficient to satisfy their duty of care in light of the current code, requiring railings be at least 42 inches, and the fact that even code-compliant balconies may nonetheless be too low to be reasonably safe.

Plaintiffs further argue that the Marianis received actual notice of the potentially dangerous condition on May 17, 2012 and again on October 25, 2018, when the HOA notified them that homeowners had permission to have tempered glass guardrails installed on their balconies at the owners' cost. (Ex. 15 to Kiesel Decl.)

Plaintiffs also refute that the Decedent was intoxicated at the time of the incident, citing to Romana's deposition testimony indicating, "Again, I don't think he was intoxicated and drunk. We had a few drinks and dinner. He was fine. It was a normal Saturday." (Ex. 8 to Kiesel Decl. at p. 116:18-20.)[2]

In support of their arguments,

Plaintiffs advance the following evidence:

- Expert evidence that the railing at issue measured 36 3/8 inches at its lowest point.

(Ex. 19 [Burns Decl.] ¶ 8.)

- New building code requirements that railings be at least 42 inches (RJN No. 1 [1996 Los Angeles Building Code, Section 509.2].)

- Testimony that Romana could not recall precisely how many drinks the Decedent consumed on the day of the accident. (Niksefats' Ex. 12 [Romana's Depo] at pp. 97:11-109:20.)

- Romana's testimony, "Again, I don't think he was intoxicated and drunk. We had a few drinks and dinner. He was fine. It was a normal Saturday." (Romana's Ex. 8 to Kiesel Decl. [Romana's Depo] at p. 116:18-20.)

- The HOA's memos to the Marianis dated May 17, 2012 and October 25, 2018, granting homeowners permission to upgrade their balcony guardrails to tempered glass, at the owner's expense.

Regarding Civil Code section 1714, the Court generally agrees that the landlord owes an ordinary duty of care not to create an unreasonable risk of harm to its tenants and guests. But here, the evidence demonstrates the railings at issue complied with all relevant Building Code height requirements, as the height did not dip below the mandated 36 inches, even at its lowest point.

Plaintiffs also point to the fact that the HOA delegated the duty of upgrading the balconies to the homeowners, by allowing them to do so, at their own expense.

But Plaintiffs have not provided evidence of any other extenuating factors that the existing, code-compliant railings posed an unreasonable risk of harm to the Decedent that would have required the Marianis to pay for the optional upgrade. For example, there is no evidence that the Marianis knew Decedent was particularly vulnerable to falling over a balcony

railing, or that the railings were in a state of disrepair or otherwise posed an unreasonable risk of harm.

And while Plaintiffs point to the new railing height requirements for new constructions, if the legislature intended to require that all railings in old buildings be updated to meet the new height standards, they could have, but chose not to do so.

With regard to a duty under the Rowland factors, Plaintiffs argue that the open and obvious doctrine bars only a duty to warn, not a duty to remedy. Not so. "Generally, if a danger is so obvious that a person could reasonably be expected to see it, the condition itself serves as a warning, and the landowner is under no further duty to remedy or warn of the condition." (*Krongos v. Pacific Gas & Electric Co.* (1992) 7 Cal.App.4th 387, 393, emphasis added.)

But Plaintiffs have provided no evidence of a hidden danger. By their very nature, balconies pose an inherent risk of injury or death by falling, especially where, as here, the balcony is thirteen stories above the ground.

Nor was the Decedent's death particularly foreseeable, as there is no evidence that the Marianis were aware of any prior deaths from falling over the balcony railing.

Further, the evidence demonstrates that the Decedent was intoxicated at the time of his death, and Plaintiff's opposition evidence does not refute that. While Romana may have testified that she wasn't sure exactly how many drinks were consumed, her testimony nonetheless reveals that the Decedent consumed approximately 10 drinks from noon until 10:30 p.m. on the day of the incident, and his inebriated state is corroborated by the toxicology report. Thus, the Decedent was not operating the balcony and its railing in the manner in which a reasonable person would.

Therefore, the Court finds, in considering Rowland factors, that no duty is owed to Plaintiffs.

Notwithstanding, the Plaintiffs have not met their burden of production to create any triable issues of fact that the Marianis breached its ordinary duty of care to not create an unreasonable risk of harm, by virtue of governing/maintaining the existing railings and by providing the option (but not requiring) that homeowners can upgrade to tempered glass, if they so choose.

As such, finding Plaintiffs have not met their burden of production to create any triable issues of fact that the Marianis were negligent vis-à-vis the railings, the Court grants the Marianis summary adjudication as to Issue 1.

2. ISSUE 2 – NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

“The traditional elements of duty, breach of duty, causation, and damages apply” to state a claim for negligent infliction of emotional distress. (Eriksson v. Nunnink (2015) 233 Cal.App.4th 708, 729 [cleaned up.]

“The law of negligent infliction of emotional distress in California is typically analyzed by reference to two ‘theories’ of recovery: the ‘bystander’ theory and the ‘direct victim’ theory.” (Spates v. Dameron Hospital Assn. (2003) 114 Cal.App.4th 208, 213 (hereafter Spates).)

“The bystander theory recognizes a duty in the limited class of cases where a plaintiff “(1) is closely related to the injury victim, (2) is present at the scene of the injury-producing event at the time it occurs and is then aware that it is causing injury to the victim and, (3) as a result suffers emotional distress beyond that which would be anticipated in a disinterested witness.” (Spates, supra, 114 Cal.App.4th at p. 213.)

By contrast, “[d]irect victim theory involves a duty owed directly to the plaintiff that is assumed by the defendant or imposed on the defendant as a matter of law, or that arises out of a relationship between the two.” (Spates, supra, 114 Cal.App.4th at p. 213.)

Here, Romana alleges she endured emotional distress by virtue of hearing her husband plummet to his death. (Romana’s SAC ¶ 67.) Similarly, Fouzieh and Nader allege they

suffered emotional distress by virtue of witnessed the Decedent fall to his death. (Niksefats' Complaint ¶¶ 22-23.) Thus, Plaintiffs allege only a bystander theory of recovery.

However, because, as discussed above, the Court grants summary adjudication as to Issue 1, finding Plaintiffs have not created any triable issues of material fact demonstrating that the Marianis were negligent (no duty), Plaintiffs' negligent infliction of emotional distress claims similarly fail.

As such, the Court grants the HOA summary adjudication as to Issue 2.

3. ISSUE 3 – THE NIKSEFATS' STANDING AS SUCCESSORS-IN-INTEREST

The Marianis next argue that the Niksefats lack standings as the Decedent's successor-in-interest, because he was survived by his wife Romana, who has also brought suit as his successor-in-interest.

As discussed above, the Marianis advance the marriage license between Decedent and Romana, demonstrating they were married in April 2022.

Unless a decedent dies intestate, the persons with standing to bring a wrongful death claim under Section 377.60 include "the decedent's surviving spouse, domestic partner, children, and issue of deceased children, or, if there is no surviving issue of the decedent, the persons, including the surviving spouse or domestic partner, who would be entitled to the property of the decedent by intestate succession." (Code Civ. Proc., § 377.60, subd. (a), emphasis added.)

Further, regardless of whether they are qualified under subdivision (a), if the parents of the decedent were dependent on the decedent, they may also bring a cause of action for wrongful death. (Code Civ. Proc., § 377.60, subd. (b).)

To qualify as dependent

parents, they must have been dependent “on the financial support of their children for the necessities of life” including things like shelter, clothing, food, and medical treatment. (Chavez v. Carpenter (2001) 91 Cal.App.4th 1433, 1445, fn. 8, 1446.) Emotional support alone does not suffice. (Id. at p. 1445.)

Thus, under the plain language

of the statute, because the Decedent had no surviving issue, it would appear that both Decedent's parents and Romana would have standing to sue for wrongful death. This is confirmed by the Rutter

Guide: “Parents have standing to sue if the decedent left no issue. This is so even where decedent left a surviving spouse or registered domestic partner.” (Ross and Cohen, Cal. Prac.

Guide: Probate (2026) Ch. 15-B, ¶ 15:352.)

The Marianis argue that where,

as here, the decedent is survived by a spouse, the right of the parents to bring a suit for wrongful death relies on their status as dependent parents. Further, the HOA points to the

Niksefats' Complaint itself, which does not allege standing on the basis of their financial dependency on the decedent, but rather only as the Decedents' successors-in-interest. (See Niksefats' Complaint at p. 1.)[3]

In

support of its argument that Decedent's parents lack standing as successors-in-interest, the Marianis cite to Hazelwood v. Hazelwood (1976) 57 Cal.App.3d 693, 696. But in Hazelwood,

the decedent left both a widow and a minor child of the marriage. Thus, because the decedent in Hazelwood left issue, his parents' standing hinged on their dependency.

By

contrast, here, there is no evidence that the Decedent is survived by any issue. Therefore, both Ramona, as his widow, and Fouzieh and Salim, as his parents, have standing to bring wrongful death claims.

Notwithstanding,

the Niksefats' wrongful death claim rests on allegations that that the balcony railing was not "an appropriate height to prevent individuals like [Decedent] from falling over it" in violation of the applicable statutes and their duties in negligence. (See Niksefats' Complaint ¶ 13.)

Therefore,
because, as discussed above, the Court grants summary adjudication as to Issue 1, finding no triable issues of material fact that the railing height is in violation of the applicable statutory requirements or that the Marianis were otherwise negligent for failing to upgrade the railings to the tempered glass, the Niksefats have no remaining viable causes of action.

CONCLUSION AND ORDER

For the foregoing reasons, finding no triable issues of material fact that the Marianis entitled to judgment as a matter of law with respect to Plaintiffs' causes of action premised in negligence for failing to install the optional tempered glass railing upgrades, the Court grants summary adjudication of Issues 1 and 2. In summary, the Court finds as a matter of law that no duty of due care exists after consideration of the Rowland factors.

Because these two issues dispose of all causes of action alleged by all Plaintiffs against the Marianis, the Court grants the Marianis' motion for summary judgment.

Further, the Court will enter the proposed Order lodged on October 3, 2025 in conformity with the ruling.

The Marianis shall provide notice of the Court's ruling/Order, and file the notice with a proof of service forthwith.

DATED: July 28, 2026 ____/s/____

Michael
E. Whitaker

Judge
of the Superior Court

[1] Rowland v. Christian (1968) 69 Cal.2d 108.

[2] Romana also clarifies that she and the Decedent were married on April 29, 2022, not April 24, 2022, as indicated in the HOA's separate statement.

Romana does not dispute she and the Decedent were married and living together at the time of the July 16, 2022 incident.

[3] "The pleadings play a key role in a summary judgment motion. The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues and to frame the outer measure of materiality in a summary judgment proceeding. As our Supreme Court has explained it: The materiality of a disputed fact is measured by the pleadings, which set the boundaries of the issues to be resolved at summary judgment. Accordingly, the burden of a defendant moving for summary judgment only requires that he or she negate plaintiff's theories of liability as alleged in the complaint; that is, a moving party need not refute liability on some theoretical possibility not included in the pleadings." (Hutton v. Fidelity National Title Co. (2013) 213 Cal.App.4th 486, 493 [cleaned up]; see also Laabs v. City of Victorville (2008) 163 Cal.App.4th 1242, 1258 ["The complaint limits the issues to be addressed at the motion for summary judgment. The rationale is clear: It is the allegations in the complaint to which the summary judgment motion must respond"].)

TENTATIVE

RULING – NO. 3

DEPARTMENT

207

HEARING DATE

July
28, 2026

CASE NUMBER

22STCV30270

[Consolidated with Case No. 24SMCV00738]

MOTION

Motion

for Summary Adjudication

MOVING PARTIES

Defendants and Cross-Complainants Francis

R. Mariani; Linda Y. Mariani; and Francis R. and Linda Y. Mariani Living Trust

OPPOSING PARTY

Defendant

and Cross-Defendant Wilshire Manning Homeowners Association

MOVING PAPERS:

Notice

of Motion and Motion for Summary Adjudication; Declaration of Ben M. Armistead; Separately Bound Volume of Exhibits

Separate Statement of Material Facts

Index of Exhibits

OPPOSITION PAPERS:

Opposition

to Motion for Summary Adjudication; Declaration of Helen H. Lee

Separate Statement of Material Facts in Support
of Opposition

REPLY PAPERS:

Reply

to Opposition to Motion for Summary Adjudication

Response

to Separate Statement of Material Facts in Support of Opposition

BACKGROUND

These two consolidated cases arise from the untimely death of Robert Niksefat ("Decedent" or "Robert"), who fell over the side of the balcony of the condominium unit he and his wife rented, while trying to locate the source of loud music, which emanated from the unit directly below his.

Separate lawsuits were brought by

(1) Decedent's widow, Plaintiff Romana Niksefat ("Romana"), individually and as Successor-in-Interest to Robert Niksefat (Case No. 22STCV30270); and

(2) Decedent's parents, Plaintiffs Fouzieh Niksefat ("Fouzieh") and Salim Niksefat ("Salim"), individually and as Successors-in-Interest to Robert Niksefat, and his brother, Nader Niksefat ("Nader") (together, "the Niksefats") (Case No. 24SMCV00738.)

Both lawsuits are alleged against

(1) the homeowners association, Wilshire Manning Homeowners Association, Inc. ("HOA" or "Wilshire"); and

(2) the owners of Decedent's and Romana's condominium unit, Francis R. Mariani ("Francis") and Linda Y. Mariani ("Linda") (together, "the Marianis"), individually and as Trustees of the Francis R. and Linda Y. Mariani Living Trust; and

In addition, Romana's lawsuit is brought against

(3) the neighbors directly below the Decedent's unit, Isaac Faliv ("Isaac"); Minoo Faliv ("Minoo"); and Ethan Faliv ("Ethan") (together, "the Falivs")

Romana's operative Second Amended

Complaint ("SAC") alleges six causes of action as follows:

1. Negligence

(against the HOA and the Marianis) due to the unsafe condition of the balcony's low, metal guardrail

2. Breach

of Governing Documents (against the HOA) for allowing some, but not requiring all unit owners to upgrade their lower metal guardrails with tall, tempered glass

3. Nuisance

(against the HOA) for allowing loud music and marijuana smoke to regularly emanate from the Falivs' residence.

4. Nuisance

(against the Falivs) for allowing loud music and marijuana smoke to regularly emanate from their residence

5. Negligent

Infliction of Emotional Distress (against the HOA and the Marianis) for the emotional distress resulting from their failure to upgrade the balcony's guardrail

6. Negligent

Infliction of Emotional Distress (against the Falivs) for the emotional distress resulting from the loud music and marijuana smoke emanating from their unit.

The Niksefats' Complaint alleges two causes of action as follows:

1. Wrongful

Death (by Decedent's parents against the HOA and the Marianis)

2. Negligent

Infliction of Emotional Distress (by Fouzieh and Nader against the HOA and the Marianis) of the emotional distress resulting from personally witnessing the Decedent's death.

In addition, the Marianis filed a cross-complaint against Wilshire alleging two causes of action as follows:

1. Equitable

Indemnity

2. Contribution

The Marianis now move for summary adjudication of the following issue:

Issue One: The Marianis cause of action against Wilshire Manning for equitable indemnity should prevail because Wilshire Manning cannot demonstrate that Defendants had a duty to repair or maintain the subject balcony.

Wilshire opposes the motion and the Marianis reply.

LEGAL STANDARDS – MOTION FOR SUMMARY
JUDGMENT/ADJUDICATION

“[T]he party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law[.] There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850 (hereafter Aguilar).) “[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.” (Ibid.; Smith v. Wells Fargo Bank, N.A. (2005) 135 Cal.App.4th 1463, 1474 [summary judgment standards held by Aguilar apply to summary adjudication motions].)

Further, “the trial court may not weigh the evidence in the manner of a factfinder to determine whose version is more likely true. Nor may the trial court grant summary judgment based on the court’s evaluation of credibility.” (Aguilar, supra, 25 Cal.4th. at p. 840

[cleaned up]; see also *Weiss v. People ex rel. Department of Transportation* (2020) 9 Cal.5th 840, 864 [“Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party”].)

A party may move for

summary adjudication as to one or more causes of action, affirmative defenses, claims for damages, or issues of duty if that party contends that there is no merit to the cause of action, defense, or claim for damages, or if the party contends that there is no duty owed. (See Code Civ. Proc., § 437c, subd. (f)(1).) “A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Ibid.) A cause of action has no merit if: (1) one or more elements of the cause of action cannot be separately established, even if that element is separately pleaded, or (2) a defendant establishes an affirmative defense to that cause of action.

(See Code Civ. Proc., § 437c, subd. (n); *Union Bank v. Superior Court* (1995) 31 Cal.App.4th 573, 583.)

Once the defendant has shown that a cause of action has no merit, the burden shifts to the plaintiff to show that a triable issue of material fact exists as to that cause of action. (See Code Civ. Proc., § 437c, subd. (o)(2); *Union Bank v. Superior Court*, supra, 31 Cal.App.4th at p.

583.) Additionally, in line with *Aguilar*,

“[o]n a motion for summary adjudication, the trial court has no discretion to exercise. If a triable issue of material fact exists as to the challenged causes of action, the motion must be denied. If there is no triable issue of fact, the motion must be granted.” (*Fisherman's Wharf Bay Cruise Corp. v. Superior Court* (2003) 114 Cal.App.4th 309, 320.)

DISCUSSION

“Express indemnity refers to an obligation that arises by virtue of express contractual language establishing a duty in one party to save another harmless upon the occurrence of specified circumstances.” (*Prince v. Pacific Gas & Electric Co.* (2009) 45 Cal.4th 1151, 1158 (hereafter *Prince*)). “Express indemnity generally is not subject to equitable considerations or a joint legal obligation to the injured party; rather, it is enforced in accordance with the terms of the contracting parties' agreement.” (Ibid.)

“Unlike express indemnity, traditional equitable indemnity requires no contractual relationship between an indemnitor and an indemnitee.” (Ibid.) Further, “there can be no indemnity without liability.” (Id. at p. 1159.)

Here, as explained in the Court’s concurrent Tentative Rulings, because the Court grants the HOA’s and the Marianis’ motions for summary judgment as to Plaintiffs’ claims, there is no duty to indemnify.

CONCLUSION AND ORDER

Therefore, because there is no predicate liability upon which to base indemnity, the Court denies the Marianis’ motion for summary adjudication as moot.

The Marianis shall provide notice of the Court’s ruling and file the notice with a proof of service forthwith.

DATED: July 28, 2026 _____/s/_____

Michael
E. Whitaker

Judge
of the Superior Court

TENTATIVE
RULING – NO. 4

DEPARTMENT

207

HEARING DATE

July
28, 2026

CASE NUMBER

22STCV30270

[Consolidated with Case No. 24SMCV00738]

MOTION

Motion

for Summary Judgment, or in the alternative, Summary Adjudication

MOVING PARTIES

Defendants Ezek Faliv; Minoo Faliv; and

Ethan Faliv

OPPOSING PARTY

Plaintiff

Romana Niksefat

MOVING PAPERS:

Notice

of Motion and Motion for Summary Judgment/Summary Adjudication; Memorandum
of Points and Authorities

Separate

Statement of Undisputed Material Facts

Declaration Of Christina S. Karayan

Compendium

of Exhibits

OPPOSITION PAPERS:

Opposition to Motion for Summary Judgment/Summary
Adjudication

Evidentiary Objections in Support
of Plaintiff's Opposition

Response to Statement of Material

Facts and Separate Statement of Additional Facts in Support of Plaintiff's
Opposition

Declaration of Eugene M. Vanderpol,
MSME, PE, ACTAR

Declaration of Romana Niksefat

Declaration of Mark J. Burns,
B.E., J.D.

Index of Evidence

Declaration of Lauren M. Kiesel and
Compendium of Evidence in Support of Plaintiff's Opposition

REPLY PAPERS:

Reply
to Opposition to Motion for Summary Judgment/Summary Adjudication

Response
to Separate Statement of Undisputed Material Facts in Support of
Opposition

Objections
to Evidence

BACKGROUND

These two consolidated cases arise from the untimely death of Robert
Niksefat ("Decedent" or "Robert"), who fell over the side of the balcony of the
condominium unit he and his wife rented, while trying to locate the source of
loud music, which emanated from the unit directly below his.

Separate lawsuits were brought by

(1) Decedent's widow, Plaintiff Romana Niksefat
("Romana"), individually and as Successor-in-Interest to Robert Niksefat (Case
No. 22STCV30270); and

(2) Decedent's parents, Plaintiffs Fouzieh Niksefat ("Fouzieh") and Salim Niksefat ("Salim"), individually and as Successors-in-Interest to Robert Niksefat, and his brother, Nader Niksefat ("Nader") (together, "the Niksefats") (Case No. 24SMCV00738.)

Both lawsuits are alleged against

(1) the homeowners association, Wilshire Manning Homeowners Association, Inc. ("HOA" or "Wilshire"); and

(2) the owners of Decedent's and Romana's condominium unit, Francis R. Mariani ("Francis") and Linda Y. Mariani ("Linda") (together, "the Marianis"), individually and as Trustees of the Francis R. and Linda Y. Mariani Living Trust; and

In addition, Romana's lawsuit is brought against

(3) the neighbors directly below the Decedent's unit, Isaac Faliv ("Isaac"); Minoo Faliv ("Minoo"); and Ethan Faliv ("Ethan") (together, "the Falivs")

Romana's operative Second Amended Complaint ("SAC") alleges six causes of action as follows:

1. Negligence

(against the HOA and the Marianis) due to the unsafe condition of the balcony's low, metal guardrail

2. Breach

of Governing Documents (against the HOA) for allowing some, but not requiring all unit owners to upgrade their lower metal guardrails with tall, tempered glass

3. Nuisance

(against the HOA) for allowing loud music and marijuana smoke to regularly emanate from the Falivs' residence.

4. Nuisance

(against the Falivs) for allowing loud music and marijuana smoke to regularly emanate from their residence

5. Negligent

Infliction of Emotional Distress (against the HOA and the Marianis) for the emotional distress resulting from their failure to upgrade the balcony's guardrail

6. Negligent

Infliction of Emotional Distress (against the Falivs) for the emotional distress resulting from the loud music and marijuana smoke emanating from their unit.

The Niksefats' Complaint alleges two causes of action as follows:

1. Wrongful

Death (by Decedent's parents against the HOA and the Marianis)

2. Negligent

Infliction of Emotional Distress (by Fouzieh and Nader against the HOA and the Marianis) of the emotional distress resulting from personally witnessing the Decedent's death.

The Falivs now move for summary judgment, or in the alternative, summary adjudication on the following issues:

Issue One: The Faliv Defendants are entitled to summary adjudication on the cause of action for nuisance as the undisputed material facts establish there was no "continuing" nuisance on the part of the Faliv Defendants.

Issue Two: The Faliv Defendants are entitled to summary adjudication on the cause of action for nuisance as the undisputed material facts establish there was no "substantial" or "unreasonable" interference on the part of the Faliv Defendants.

Issue Three: The Faliv Defendants are entitled to summary adjudication on the cause of action for negligent infliction of emotional distress as the undisputed material facts establish the Faliv Defendants owed no duty of the kind alleged.

Issue Four: The Faliv Defendants are entitled to summary adjudication as there is no triable issue of fact with respect to whether any act or omission on the part of Defendant was a substantial factor or cause of the incident and Plaintiff's alleged injuries.

Romana opposes the motion and the Falivs reply.

EVIDENTIARY OBJECTIONS

The

Court rules as follows with respect to Romana's evidentiary objections:

1. Sustained – relevance

The Court rules as follows

with respect to the Falivs' evidentiary objections:

1. Overruled
2. Overruled
3. Overruled
4. Overruled
5. Overruled
6. Overruled
7. Overruled
8. Overruled
9. Overruled
10. Overruled
11. Sustained

12. Overruled

13. Overruled

14. Overruled

15. Overruled

16. Overruled

17. Overruled

18. Overruled

19. Sustained

20. Sustained

21. Sustained

22. Sustained

23. Sustained

24. Sustained

25. Sustained

26. Overruled

27. Sustained – Relevance

28. Sustained – Relevance

29. Sustained – Foundation

30. Sustained – Relevance

31. Sustained - Relevance

32. Overruled

33. Overruled

34. Overruled

LEGAL STANDARDS – MOTION FOR SUMMARY JUDGMENT/ADJUDICATION

“[T]he party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law[.] There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850 (hereafter Aguilar).) (“[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.” (Ibid.; Smith v. Wells Fargo Bank, N.A. (2005) 135 Cal.App.4th 1463, 1474 [summary judgment standards held by Aguilar apply to summary adjudication motions].))

Further, “the trial court may not weigh the evidence in the manner of a factfinder to determine whose version is more likely true. Nor may the trial court grant summary judgment based on the court’s evaluation of credibility.” (Aguilar, supra, 25 Cal.4th. at p. 840 [cleaned up]; see also Weiss v. People ex rel. Department of Transportation (2020) 9 Cal.5th 840, 864 [“Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party”].))

A party may move for summary adjudication as to one or more causes of action, affirmative defenses, claims for damages, or issues of duty if that party contends that there is no merit to the cause of action, defense, or claim for damages, or if the party contends that there is no duty owed. (See Code Civ. Proc., § 437c, subd. (f)(1).) “A motion for summary adjudication shall be

granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Ibid.) A cause of action has no merit if: (1) one or more elements of the cause of action cannot be separately established, even if that element is separately pleaded, or (2) a defendant establishes an affirmative defense to that cause of action.

(See Code Civ. Proc., § 437c, subd. (n); Union Bank v. Superior Court (1995) 31 Cal.App.4th 573, 583.)

Once the defendant has shown that a cause of action has no merit, the burden shifts to the plaintiff to show that a triable issue of material fact exists as to that cause of action. (See Code Civ. Proc., § 437c, subd. (o)(2); Union Bank v. Superior Court, supra, 31 Cal.App.4th at p.

583.) Additionally, in line with Aguilar,

"[o]n a motion for summary adjudication, the trial court has no discretion to exercise. If a triable issue of material fact exists as to the challenged causes of action, the motion must be denied. If there is no triable issue of fact, the motion must be granted." (Fisherman's Wharf Bay Cruise Corp. v. Superior Court (2003) 114 Cal.App.4th 309, 320.)

DISCUSSION

1. ISSUES 1 AND 2 – NUISANCE

A "nuisance" is "[a]nything which is injurious to health, including, but not limited to, the illegal sale of controlled substances, or is indecent or offensive to the senses, or an obstruction to the free use of property, so as to interfere with the comfortable enjoyment of life or property, or unlawfully obstructs the free passage or use, in the customary manner, of any navigable lake, or river, bay, stream, canal, or basin, or any public park, square, street, or highway, is a nuisance." (Civ. Code, § 3479.)

A nuisance may be public, private, or both. (Koll-Irvine Center Property Owners Assn. v. County of Orange (1994) 24 Cal.App.4th 1036, 1041.) "Unlike public nuisance, which is an interference with the rights of the community at large, private nuisance is a civil wrong based on disturbance of rights in land." (Ibid.) "So long as the interference is substantial and unreasonable, and such as would be offensive or inconvenient to the normal person, virtually any disturbance of the enjoyment of the property may amount to a nuisance." (Ibid.)

The elements of a private nuisance are (1) Plaintiff leased or occupied the property; (2) Defendants, by acting or failing to act, created a dangerous condition on the property; (3) Defendants' action or failure to act was intentional, negligent, or reckless; (4) the condition substantially interfered with Plaintiff's use or enjoyment of the property; (5) an ordinary person would be reasonably annoyed or disturbed by Defendants' conduct; (6) Plaintiff was harmed; (7) Defendants' conduct was a substantial factor in causing Plaintiff's harm; and (8) the seriousness of the harm outweighs the public benefit of Defendants' conduct.

(CACI No. 2021.)

The Falivs argue that Plaintiff cannot establish a continuing nuisance, or a substantial/ unreasonable interference with her use and enjoyment of the property.

a. The Falivs' Evidence

In support, the Falivs advance the following evidence:

.

Romana was lawfully married to the decedent at the time of the incident. (UMF No. 4.)

.

The Marianis owned the subject property, which was occupied by Romana and the Decedent at the time of the incident. (UMF No. 6.)

.

The Falivs lived in the unit directly below Decedent's at the time of the incident.

(UMF No. 7.)

.

On the night of the incident, Romana and the Decedent heard loud noises and music emanating from the Falivs' unit directly below theirs. (UMF No. 8.)

.

The music was so loud that around 10:46 p.m., Decedent's mother, who resided in the unit directly above Decedent's and

Romana's, called Decedent on his cell phone to inquire about the source of the noise. (UMF No. 9.)

.

Believing the music to be coming from the Falivs' unit directly below theirs, Decedent left the master bedroom and went to the balcony, to check the source of the noise. (UMF No. 10, 14.)

.

A few moments later, Romana looked down from the balcony and saw Decedent's body on the concrete deck by the pool. (UMF Nos. 11-12.)

.

The close proximity of the balconies allows residents to hear and observe the people occupying the balcony of any unit below theirs. (UMF No. 13.)

.

The Faliv Defendants had, over several years, created and caused a nuisance in their unit, including loud music, loud voices, and abundant marijuana smoke, emanating from the Falivs' unit. (UMF No. 17.)

.

On August 22, 2016, the HOA sent a letter to the Falivs, requesting they cease and desist their ongoing CC&R violations. (UMF No. 18.)

.

The August 22, 2016 letter alleges the Falivs and their son, Ethan, had friends coming in and out of the unit where they were loud, played loud music, and smoked marijuana throughout the night and early morning hours. (UMF No. 19.)

.

On February 20, 2017, the HOA sent a letter to the Falivs regarding the continued noise violations, occurring at 3:00 a.m. on January 11, 2017; 11:30 a.m. on October 30, 2016; 10:25 p.m. on October 23, 2016; 12:35 a.m. on October 13, 2016; 12:15 a.m. on October 6, 2016; and a complaint of marijuana smoke emanating from the unit at 1:30 a.m. on October 3,

2016. (UMF No. 20.)

.

A hearing was scheduled for March 7, 2017 to resolve the ongoing nuisance created by the loud noise and marijuana smoke emanating from the Falivs' unit, which constituted unreasonable disturbances and nuisances in violation of the CC&Rs.

(UMF No. 21.)

.

On March 20, 2017, the HOA sent a letter to the Falivs, outlining resolution for mitigating smoke and noise, and threatened monetary penalties for past violations if the nuisance continued. (UMF No. 22.)

.

On the date of the incident, July 16, 2022, the Falivs created the same ongoing and continuing nuisance by playing loud music in their unit around 10:46 p.m., which caused the Decedent to step on the balcony to confirm the source of the noise.

(UMF No. 25, 34.)

.

As a result of the ongoing nuisance created by the Falivs, Decedent suffered fatal injuries.

(UMF No. 26.)

.

On the date of the incident, Decedent drank mixed drinks with lunch and dinner: two drinks at Eataly between 12pm and 1pm; 5-6 drinks at the Maybounre Beverly Hills between 1 to 6 pm; and approximately 3 drinks at the Baltair Restaurant between 8pm and 10:30 pm. (UMF No. 35.)

In particular, the Falivs argue that the nuisance was not of a substantial nature and duration as required because Romana relies on complaints that took place at the end of 2016 and beginning of 2017, which is five years before the night in question, and one night of loud music is of insufficient duration and not substantial to constitute a nuisance.

The Court does not find that the Falivs have met their initial prima facie burdens of production and persuasion to demonstrate that the nuisance was

insufficiently substantial or of insufficient duration. The evidence demonstrates the noise was apparently substantial that the Decedent's mother in the unit directly above Decedent's, heard the noise and called him to ask about it. Further, the noise occurred at almost 11 p.m., which violated the HOA's requirement that such noise abate by 10 p.m.

Even further, the Falivs have a long demonstrated history of the exact same type of noise problems, warranting intervention by the HOA.

Thus, the Falivs have not met their initial burdens of production and persuasion that the loud music did not constitute a nuisance of sufficient substance or duration.

b. Romana's Evidence

Although the burden does not shift to Romana, the Court notes that Romana does not rely solely on the noise complaints from 2016 to 2017. In opposition, Romana submits a declaration, indicating, "Between October 2021 and the date of the Incident, unit 1208 would throw very loud parties approximately two times per month." (Romana Decl. ¶ 5.)

Thus, even if the burden had shifted to Romana, the Court finds that triable issues of material fact preclude granting summary adjudication as to Issues 1 and 2.

2. ISSUE 3 – NIED DUTY

"The traditional elements of duty, breach of duty, causation, and damages apply" to state a claim for negligent infliction of emotional distress. (Eriksson v. Nunnink (2015) 233 Cal.App.4th 708, 729 [cleaned up].)

"The law of negligent infliction of emotional distress in California is typically analyzed by reference to two 'theories' of recovery: the 'bystander' theory and the 'direct victim' theory." (Spates v. Dameron Hospital Assn. (2003) 114 Cal.App.4th 208, 213 (hereafter Spates).)

"The bystander theory recognizes a duty in the limited class of cases where a plaintiff "(1) is closely related to the injury victim, (2) is present at the scene of the injury-producing event at the time it occurs and is then aware that it is causing injury to the victim and, (3) as a result suffers

emotional distress beyond that which would be anticipated in a disinterested witness.” (Spates, supra, 114 Cal.App.4th at p. 213.)

By contrast, “[d]irect victim theory involves a duty owed directly to the plaintiff that is assumed by the defendant or imposed on the defendant as a matter of law, or that arises out of a relationship between the two.” (Spates, supra, 114 Cal.App.4th at p. 213.)

Here, Romana alleges she endured emotional distress by virtue of hearing her husband plummet to his death. (Romana’s SAC ¶ 67.) Thus, Romana alleges only a bystander theory of recovery.

a. Duty of Care – General Standards

“To state a cause of action for negligence, a plaintiff must establish the defendant owed a legal duty of care. Generally speaking, all persons have a duty to take reasonable care in their activities to avoid causing injury, though particular policy considerations may weigh in favor of limiting that duty in certain circumstances.” (Brown v. USA Taekwondo (2021) 11 Cal.5th 204, 209 (hereafter Brown).)

In general, “[e]veryone is responsible, not only for the result of his or her willful acts, but also for an injury occasioned to another by his or her want of ordinary care or skill in the management of his or her property or person, except so far as the latter has, willfully or by want of ordinary care, brought the injury upon himself or herself.” (Civ. Code, § 1714.) Section 1714 “establishes the default rule that each person has a duty to exercise, in his or her activities, reasonable care for the safety of others.” (Brown, supra, 11 Cal.5th at p. 214.)

“Duty is not universal; not every defendant owes every plaintiff a duty of care. A duty exists only if the plaintiff’s interests are entitled to legal protection against the defendant’s conduct. Whether a duty exists is a question of law to be resolved by the court.” (Brown, supra, 11 Cal.5th at p. 213 [cleaned up].) “[W]hether to recognize a duty to protect is governed by a two-step inquiry. First,

the court must determine whether there exists a special relationship between the parties or some other set of circumstances giving rise to an affirmative duty to protect. Second, if so, the court must consult the factors described in Rowland [1] to determine whether relevant policy considerations counsel limiting that duty." (Id. at p. 209.)

"Section 1714 states a broad rule, but it has limits. We have explained that the law imposes a general duty of care on a defendant only when it is the defendant who has created a risk of harm to the plaintiff, including when the defendant is responsible for making the plaintiff's position worse. The law does not impose the same duty on a defendant who did not contribute to the risk that the plaintiff would suffer the harm alleged. Generally, the person who has not created a peril is not liable in tort merely for failure to take affirmative action to assist or protect another from that peril." (Brown, supra, 11 Cal.5th at p. 214 [cleaned up].)

A special relationship between the defendant and the victim is one that "gives the victim a right to expect" protection from the defendant." (Brown, supra, 11 Cal.5th at p. 216.) "Relationships between parents and children, colleges and students, employers and employees, common carriers and passengers, and innkeepers and guests, are all examples of special relationships that give rise to an affirmative duty to protect. The existence of such a special relationship puts the defendant in a unique position to protect the plaintiff from injury. The law requires the defendant to use this position accordingly." (Ibid. [cleaned up].)

There is a special, fiduciary relationship as between a homeowner's association and its members (see Kovich v. Paseo Del Mar Homeowners' Assn. (1996) 41 Cal.App.4th 863, 867) as well as between landlord and tenant (see Castaneda v. Olsher (2007) 41 Cal.4th 1205, 1213).

The Rowland factors include:

the foreseeability of harm to the plaintiff, the burden to the defendant and the consequences to the community of imposing the duty. The court's task in determining whether a duty exists is not to decide whether a particular plaintiff's injury

was reasonably foreseeable in light of a particular defendant's conduct, but rather to evaluate more generally whether the category of negligent conduct at issue is sufficiently likely to result in the kind of harm experienced that liability may appropriately be imposed on the negligent party. Foreseeability, when analyzed to determine the existence or scope of a duty, is a question of law to be decided by the court.

(Jacobs v. Coldwell Banker Residential Brokerage Co. (2017) 14 Cal.App.5th 438, 446 [cleaned up].)

But “Foreseeability of harm is typically absent when a dangerous condition is open and obvious. Generally, if a danger is so obvious that a person could reasonably be expected to see it, the condition itself serves as a warning, and the landowner is under no further duty to remedy or warn of the condition. In that situation, owners and possessors of land are entitled to assume others will perceive the obvious and take action to avoid the dangerous condition.” (Id. at p. 447 [cleaned up].) Similarly, in Krongos, the Court of Appeal held “Generally, if a danger is so obvious that a person could reasonably be expected to see it, the condition itself serves as a warning, and the landowner is under no further duty to remedy or warn of the condition.” (Krongos v. Pacific Gas & Electric Co. (1992) 7 Cal.App.4th 387, 393.)

b. The Falivs' Evidence

In addition to the above evidence, the Falivs advance the following:

- Romana claims to have suffered serious and permanent injuries, including mental and emotional injuries, as a direct and proximate result of hearing her husband fall to his death. (UMF No. 27-28.)

The Falivs argue that they owed no duty of care because the incident was not foreseeable in consideration of the Rowland factors. Therefore, the Falivs have met their initial burdens of production and persuasion to demonstrate that they did not owe Decedent or Romana any duty of care.

c. Romana's Evidence

In opposition, Romana argues that the CC&Rs impose a duty not to

produce “unreasonable disturbance or annoyance, be unreasonably injurious to health, be indecent, be detrimental to other property, or create an unreasonable obstruction to the free use of property” including by “any noxious odor or smoke.” (Ex. 1 to Kiesel Decl., § 7.10.)

But in reply, the Falivs point out that the CC&Rs did not impose a duty on the Falivs with respect to Ramona or Decedent, who were not owners or members to the CC&Rs. Further, a contractual breach of CC&Rs does not generally give rise to a duty in tort. (See, e.g., *Chee v. Amanda Goldt Property Management* (2006) 143 Cal.App.4th 1360, 1375-1376 [finding “no authority for the novel proposition that CC&R’s, which are private recorded restrictions on the use of property, may also operate as a legal basis for expanding the duty of care”].)

Therefore, Romana has not met her burden of production to create any triable issue of fact that the Falivs owed her and Decedent a duty of care.

3. ISSUE 4 – CAUSATION

The Falivs concede that “causation is ordinarily a question of fact which cannot be resolved by summary judgment.” (*Nichols v. Keller* (1993) 15 Cal.App.4th 1672, 1687.

Notwithstanding, the Falivs argue that Ramona cannot establish causation as a matter of law because the cause of Decedent’s fall is too speculative.

The Court disagrees. The evidence suggests that after hearing the noise himself and receiving a call from his mother upstairs about the noise, the Decedent went out on his balcony in an alleged inebriated state and likely leaned over the balcony in an attempt to either confirm the source of the loud noise and/or to try to communicate with the Falivs from the balconies.

While there may not be certainty as to what occurred, there is sufficient evidence for a factfinder to weigh the evidence and determine whether the Falivs caused or contributed to Decedent’s fall.

Therefore, the Court denies

summary adjudication as to Issue 4.

CONCLUSION AND ORDER

Therefore, the Court grants in part and denies in part the Falivs' motion for summary adjudication.

Finding the Falivs have not met their initial burdens of production and persuasion with regard to Issues 1, 2, and 4, and that Romana has created triable issues of material fact with regard to Issues 1 and 2 in any event, the Court denies summary adjudication of Issues 1, 2, and 4. Further, because the Court denies summary adjudication of Issues 1, 2, and 4, the Court denies summary judgment.

However, finding that the Falivs have met their initial burdens of production and persuasion to demonstrate they owed Decedent and Ramona no duty of care, and that Ramona has not created any triable issues of material fact, the Court grants summary adjudication as to Issue 3.

Further, the Court orders the Falivs to lodge and serve a proposed Order in conformity with the Court's ruling on or before August 4, 2026.

The Falivs shall provide notice of the Court's ruling and file the notice with a proof of service regarding the same.

DATED: July 28, 2026 ____/s/____

Michael
E. Whitaker

Judge
of the Superior Court

[1] Rowland v. Christian (1968) 69 Cal.2d 108.